IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an appeal in terms of Section 331(1) of the Code of Criminal Procedure Act No. 15 of 1979, reads with Article 139 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

Democratic Socialist Republic of Sri Lanka

Complainant

Vs

Court of Appeal Case No:
CA/HCC/0087-88/024
High Court of Kalutara
Case No: **HC 177/2009**

1. Gamage Don Ruwan Manjula *alias* "Manju"
2. Gamage Don Manjula Priyantha
3. Saputhanthrige Ranjith alias "Kokka"
4. Viraj Nishantha Kumara Munasinghe a*lias* "Shantha"
5. Udawaththa Kankanamlage Don Thomas Appuhamy
6. Udawaththa Kankanamlage Sumithrananda
7. Thanthrige Rohana Wasantha *alias* "Rotiya"
8. Gamage Don Nishantha alias "Sudda"
9. Mahathanthrige Don Dayananda
10. Isurumuni Lily Chaminda De Silva Abeysekara
11. Hewa Wilewaththage Lalitha Ananda
12. Dikpititya Hewage Sugath.

Accused

AND NOW BETWEEN

1. Gamage Don Ruwan Manjula *alias* "Manju"
2. Thanthrige Rohana Wasantha *alias* "Rotiya"

Accused – Appellants

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant - Respondent

Before : **P. Kumararatnam, J.**

Pradeep Hettiarachchi, J.

Counsel : Amila Palliyage with Sandeepani Wijesuriya, Sawani Udugampola, Lakitha Wakishtaarachchi, Subaj De Silva Gaythrika De Silva for the 1st Accused- Appellant
Neranjan Jayasingha with Randunu Heelage for the 2nd Accused-Appellant
Riyaz Bary DSG for the Respondent

Argued on : 13.01.2026, and 14.01.2026

Decided on : 13.03.2026

Pradeep Hettiarachchi, J

Judgment

1. In this case, twelve accused were indicted before the High Court of Kalutara on three counts, namely:
    a. On or about 18-04-2007, within the jurisdiction of the High Court of Matugama, the Accused persons, being members of the unlawful assembly, the common object of which was to cause the death of one Anagiyadurage Gamini Wijayawardene, committed an offence punishable under Section 140 of the Penal Code.

    b. At the same time and place aforesaid, in the same course of transaction, the Accused persons, being the members of the said unlawful assembly, knowing that death of said Anagiyadurage Gamini Wijayawardene would likely to have caused in prosecution of the common object aforesaid, committed an offence punishable under Section 146 read with Section 296 of the Penal Code.

    c. At the same time and place aforesaid, in the same course of transaction, the Accused persons, caused the death of said Anagiyadurage Gamini Wijayawardene an offence punishable under Section 296 read with Section 32 of the Penal Code.

2. The trial was conducted before a Judge of the High Court sitting without a jury. At the conclusion of the trial, the Learned High Court Judge acquitted the 2nd, 3rd, 5th, 6th, 7th, 9th, 10th, 11th, and 12th accused of all charges. The 1st and 8th accused, who are the appellants in this appeal, were also acquitted on the 1st and 2nd counts but were convicted on the 3rd count. Accordingly, the 1st and 8th accused were sentenced to death.

3. It is against the said conviction and sentence that the appellants have preferred the present appeal. On behalf of the 1st Appellant, five grounds of appeal were advanced, while two grounds were urged on behalf of the 2nd Appellant.

Background to the case

4. The Officer-in-Charge of the Criminal Investigation Unit of the Matugama Police received a telephone call informing him of a quarrel between two groups near a funeral house at Bopitiya. At the time the call was received, the officer was on night patrol in search of suspects connected to another offence.

5. Upon receiving the information, he returned to the police station and, accompanied by several other police officers, proceeded to the scene of the crime. Upon arriving at the scene near the funeral house, he observed a man lying in a nearby gutter, bleeding profusely from his head and face. The officers immediately removed the injured person to the Wetthewa Hospital for treatment. Subsequently, he was informed that the injured person had succumbed to his injuries. This officer testified for the prosecution as PW3.

6. PW1, Sanjeewa Wijewardana, was the first witness to testify for the prosecution. On the date of the incident, he had gone to a nearby funeral house in his lorry. Upon parking his lorry near the funeral house, the 1st and 2nd Appellants, who were the 1st and 8th accused in the trial before the High Court, threatened PW1 to move his vehicle aside. At that time, a heated argument ensued between PW1 and the appellants, which subsequently escalated into a physical altercation.

7. Thereafter, some more people arrived at the scene. In the meantime, the appellants temporarily left but shortly returned, this time armed with swords. When the assailants shouted "kill him," the witness fled the scene and ran towards his house, where he encountered his father, the deceased, traveling in a three-wheeler with another person. When the deceased inquired why PW1 was running, PW1 did not disclose anything to him. Thereafter, the individuals who were pursuing PW1 surrounded the deceased's three-wheeler. At that time, PW1 heard his father shouting, "මට ගහන්න ඒපො" meaning, "Do not assault me."

8. However, PW1 did not go there to protect his father, nor had he informed anyone of the incident; instead, he returned home, contemplating what to do. At approximately 10:30 p.m., he received a telephone call that his brother had fallen from a bicycle. PW1 immediately rushed to the hospital and met his brother there.

9. At the hospital, PW1 was informed that a person with severe cut injuries, in critical condition, had been brought in. Upon going to see that person, he identified him as his father. PW1's brother was also present at the time and witnessed the situation, subsequently providing a statement to the police.

10. It is admitted that PW1 made a statement to the police three days after the alleged incident. It is also evident from the investigation that PW1 had given two separate statements to the police. The first statement was made on 19.04.2007 and the second statement was recorded later on 07.05.2007.

11. The next witness called by the prosecution was PW2, Prabhath Wijewardana, a brother of PW1 and a son of the deceased. This witness did not witness the incident. On the day of the incident, he had fallen from his bicycle and sustained injuries, for which he went to the hospital seeking treatment, where he met his brother, PW1. It was at the hospital that PW2 learned that his father had also been hospitalized as a result of an assault.

12. PW6, the Judicial Medical Officer, conducted the postmortem examination of the deceased. According to his evidence, the cause of death was injuries to the skull and brain. He observed ten external injuries and one internal injury, all caused by a heavy, sharp cutting weapon. Of these, injuries Nos. 1, 2, 9, and 10 were classified as necessarily fatal.

13. One of the principal grounds advanced on behalf of both appellants is that the evidence of PW1 is replete with contradictions, lacks credibility, and is therefore unworthy of reliance. It is further contended that the learned trial Judge failed to give due consideration to the inherent improbabilities in PW1's version of events.

14. In that context, I shall first examine the credibility of PW1's testimony and determine whether the alleged inconsistencies and contradictions are of such a nature as to vitiate its reliability, particularly in view of the fact that he was the sole eyewitness in this case.

15. In his evidence-in-chief, PW1 stated that, upon parking his lorry near the funeral house, the appellants threatened him and forced him to move the vehicle further away. At that point, an argument ensued, which later escalated into a scuffle.

16. However, in his police statement dated 19.04.2007, PW1 had stated that he went to the funeral house by bicycle. This contradiction is significant, as it directly concerns the origin of the dispute. Had PW1 arrived by bicycle, no issue regarding parking could have arisen, since the argument stemmed from the lack of space on the road following the parking of the lorry. This inconsistency in PW1's account materially undermines his credibility and raises doubt as to the reliability of his testimony.

17. Furthermore, several significant inconsistencies are apparent when comparing the testimony of PW1 with his statements to the police. PW1 stated in his police statement that he had been invited to consume illicit liquor by the 3rd accused and some others, a version that is materially different from his testimony before the High Court.

18. More importantly, the credibility of PW1's evidence regarding the identification of the appellants is also open to question. In his police statement, he had stated that, apart from the 3rd accused, he did not know the identity of the other individuals involved (vide 1D5, marked in evidence at page 172 of the Appeal Brief). This discrepancy directly affects the reliability of his identification of the appellants in the present case.

19. It is also noteworthy that PW1's evidence regarding the location of the assault is inconsistent. In his police statements, he stated that the assault occurred at the place where the accused were consuming liquor (vide 1D9 and 1D10, marked in evidence at page 174 of the Appeal Brief). Further, in his statement to the police dated 19.04.2007, PW1 did not mention the names of any of the appellants. He also stated that one Manjula Priyantha of Bopitiya had come to the scene armed with a sword (vide 1D11, marked in evidence at page 181 of the Appeal Brief).

20. The contradictory nature of PW1's evidence is further demonstrated by contradiction marked 2D8, wherein he had stated that five unknown persons who were consuming illicit liquor on the opposite side of the road had assaulted him.

21. In the present case, the contradiction marked as 2D16, PW1 stated in his statement dated 07.05.2007 that he returned home in his lorry driven by Sameera, which is in direct conflict with his testimony before the court that he ran home clad only in his undergarments. Similarly, in contradiction marked 2D17, PW1 admitted in his statement that he had not witnessed his father being assaulted, a version that materially undermines his subsequent testimony suggesting otherwise. These discrepancies,

when considered collectively, raise serious doubts regarding the reliability of PW1's account of the incident.

22. In the circumstances, contrary to what he stated in his first statement to the police, PW1, in his second statement (vide 2D15, marked in evidence at page 206 of the Appeal Brief), stated that on the day of the incident, he went to the funeral in his lorry, accompanied by a driver named Sameera (vide 2D15).

23. PW1 also testified that, following the assault, he fled the scene clad only in his undergarments. He further stated that, while running, he encountered his father (the deceased) travelling in a three-wheeler in the same direction. However, according to his own evidence, he neither warned his father not to proceed in that direction nor did his father inquire as to why he was running in such a state.

24. Further, PW1 went to the hospital only after receiving a telephone call that his brother had fallen from a bicycle and sustained injuries. This sequence of events further indicates that PW1 had not actually witnessed the assault on his father. Were it otherwise, it is highly improbable that he would have remained silent upon returning home, without informing any of his family members about the assault. This inconsistency significantly undermines the credibility of his testimony.

25. This version of events is difficult, if not impossible, to accept, as it does not reflect the conduct of a reasonably prudent person in the circumstances described by PW1. The improbability inherent in this narrative casts serious doubt on the credibility of his testimony.

26. The next glaring discrepancy discernible in the evidence of PW1 is that he admitted to having disclosed the names of the accused to the police only after ascertaining their identities. At page 202 of the proceedings, PW1 testified as follows:

ප්‍ර	:	බෝපිටියේ හිටිය සියලුම තරුණ පිරිස මේ පිරිස කියලා මම තමුන්ට යෝජනා කරනවා?
උ	:	තව කට්ටිය ඉන්නවා. සිද්ධියට සම්බන්ධ අය තමයි මම කිව්වේ නම් දන්නේ නැහැ හොයල බලලා කිව්වේ.

27. The above testimony is of considerable significance. It reveals that PW1 did not disclose the names of the accused to the police based on prior knowledge or immediate identification, but only after subsequently ascertaining their identities. This circumstance materially weakens the prosecution case, particularly in a case resting substantially on the evidence of a sole eyewitness. If the identity of the assailants was not known to PW1 at the earliest opportunity, but was instead discovered later, the possibility of error, influence, or subsequent embellishment cannot be lightly disregarded.

28. The existence of two separate statements assumes significance when assessing the consistency and reliability of the evidence of PW1. In a criminal trial, particularly where the prosecution case substantially rests on the testimony of a sole eyewitness, any omissions or inconsistencies between earlier statements made to the police and the evidence subsequently given in court may materially affect the credibility of the witness. Therefore, it becomes necessary to carefully examine whether the material facts narrated in court were disclosed in the earlier statements made during the investigation.

29. Moreover, this inconsistency between the two statements is not a trivial variation but relates to a material aspect of PW1's movements on the day of the incident. Such contradictory versions regarding the mode of travel materially impair the consistency of his narrative and cast doubt on the reliability of his testimony. When a witness provides mutually inconsistent accounts of significant events, the court is compelled to approach his evidence with caution.

30. When considered together with the other contradictions already discussed, it reveals a pattern of shifting versions given by PW1 regarding material aspects of the incident. Repeated inconsistencies of this nature cumulatively erode the credibility of a witness and render it unsafe to place implicit reliance on his testimony, particularly where he is the sole eyewitness to the incident.

31. The evidence of PW3, Samantha Wikramathantri, the police officer who received the first information while on patrol, further casts doubt on the veracity of PW1's testimony. PW3 recorded two statements from PW1 on 19.04.2007 and 07.05.2007,

respectively. PW3 admitted that the first statement differed substantially from the second.

32. In the first statement, PW1 mentioned only the names of the 1st appellant, the 2nd appellant, and one Roshan alias "Rotiya" as being involved in the offence. It was only in his second statement, made nineteen days later, that PW1 mentioned the names of the other accused.

33. This progressive expansion of the list of alleged assailants raises serious concerns regarding the reliability of PW1's identification of the accused and further undermines the consistency of his version of events.

34. In a trial of this nature, the burden lies on the prosecution to prove the criminal charge beyond a reasonable doubt. Accordingly, the evidence adduced for that purpose must be free from material discrepancies and inconsistencies, so that the court can safely act upon it to secure a conviction.

35. In the present case, the testimony of the sole eyewitness, PW1, is marked by several material inconsistencies and contradictions that go to the very root of the matter, thereby undermining his credibility. In particular, PW1's evidence concerning the location where the dispute began, the identification of the accused, and his subsequent conduct, when considered collectively, casts serious doubt on his trustworthiness.

36. In ***State of Punjab v. Sucha Singh, (2003) 3 SCC 153***, it was observed by the Supreme Court of India that any father, worth the name, who was claiming to be present at the place of the incident would not remain a mute spectator when his son is being inflicted as many as twenty-four injuries at his very nose. In the present case, PW1, the son of the deceased, claimed to have been present in the vicinity and to have witnessed his father being assaulted.

37. In the present case, according to his own evidence, PW 01 returned home thereafter and remained silent without informing any of his family members about the incident. Such conduct appears wholly inconsistent with the normal human behaviour expected of a person who had just witnessed a violent attack on his own father, and therefore raises serious doubt as to the credibility of his testimony.

38. Accordingly, taken together, PW1's evidence concerning the location where the dispute began, the identity of the accused, and his subsequent conduct collectively cast serious doubt on his reliability. These inconsistencies are not trivial; they go to the core of the matter and significantly impair the credibility of his testimony. In these circumstances, it is unsafe to base a conviction solely on such tainted and doubtful evidence.

39. In these circumstances, it would be unsafe to base a conviction solely on such tainted and doubtful evidence. The learned trial Judge, in the impugned judgment, convicted the appellants on the 3rd count, namely, the murder of Anagiyadurage Gamini Wijayawardene, while acting in furtherance of the common intention within the meaning of Section 32 of the Penal Code.

40. In a charge framed on the basis of common intention, it is a fundamental requirement that the prosecution establish, by cogent evidence, that there was a prior meeting of minds or a pre-arranged plan, and that each accused participated in furtherance of that shared intention. In particular, where the offence alleged is murder, the existence of a common murderous intention among the accused must be clearly demonstrated.

41. Section 32 of the Penal Code reads as follows:

> *"When a criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone."*

42. However, upon a perusal of the impugned judgment, it is evident that although the Learned Trial Judge convicted the appellants on the basis of Section 32 of the Penal Code, no reasons were assigned as to how the appellants had shared a common intention at the time of committing the alleged offence. The absence of specific reasoning on this essential element constitutes a serious lacuna in the impugned judgment.

43. In this regard following authorities would of much relevance.

    Section 32 lays down only a principle of criminal liability and such conduct must be in furtherance of the common intention shared with the principal perpetrator. (***Attorney-General vs. Munasinghe and Others 70 NLR 241***).

44. In ***The King vs. Assappu 50 NLR 324***, Dias, J. held that if common intention is required to be considered in a trial the jury be directed as following vital and fundamental principles:

"(a) the case of each prisoner must be considered separately;

(b) that the Jury must be satisfied beyond reasonable doubt that he was actuated by a common intention with the doer of the criminal act at the time the alleged offence was committed;

(c) they must be told that the benefit of any reasonable doubt on this matter must be given to the prisoner concerned— 47 N. L. R. at p 375;

(d) the Jury must be warned to be careful not to confuse "Same or similar intention entertained independently of each other" with "Common Intention";

(e) that the inference of common intention should never be reached unless it is a necessary inference deducible from the circumstances of the case—A. I. R. 1945 P. C. 118;

(f) the Jury should be told that in order to justify the inference that a particular prisoner was actuated by a common intention with the doer of the act, there must be evidence, direct or circumstantial, either of pre-arrangement, or a pre-arranged plan, or a declaration showing common intention, or some other significant fact at the time of the commission of the offence, to enable them to say that a co-accused had a common intention with the doer of the act, and not merely a same or similar intention entertained independently of each other— 47 N. L. R. at p. 375, 48 N. L. R. 2 95;

(g) the Jury should also be directed that if there is no evidence of any common intention actuating the co-accused, or any particular co-accused, or if there is any reasonable doubt on that point, then the charge cannot lie against anyone other than the actual doer of the criminal act—44 N. L. R. 370, 46 N. L. R. 135, 473, 475;

(h) in such a case such co-accused would be liable only for such criminal acts which they themselves committed;

(i) the Jury should also be directed that the mere fact that the co-accused were-present when the doer did the criminal act does not per se constitute common intention, unless there is other evidence which justifies them in so holding— 45 N. L. R. 510; and

(ii) the Judge should endeavor to assist the Jury by examining the case against each of the co-accused in the light of these principles."

These principles are equally applicable to a judge sitting without a jury in a non-jury trial.

45. It is further observed that, in the impugned judgment, the learned trial Judge has made certain assertions that are not supported by any evidence on record. At paragraph 12 of the impugned judgment, the learned trial Judge has offered an explanation as to why PW1 did not attempt to save his father. However, that finding is not supported by the evidence of PW1. No such explanation was forthcoming from PW1's testimony, and therefore, the said observation appears to be a conclusion drawn without any evidentiary basis.

46. Moreover, in the impugned judgment, the Learned High Court Judge has misdirected himself in evaluating the identification of the Accused by PW 01. According to the first statement made by PW 01 to the police on 19.04.2007, he had identified only the 1st and the 8th Accused. However, the Learned High Court Judge made certain assumptions on his own that PW 01 could have disclosed the names of the other Accused in the subsequent statement made to the police on 07.05.2007, if he had in fact identified them. It is clear that the impugned judgment itself demonstrates that PW 01 did not identify the other Accused at the outset based on any prior knowledge. Instead, it suggests that the names of other Accused were learned subsequently. Nevertheless, the impugned judgment fails to provide any proper explanation as to how PW 01 came to establish the identity of the other Accused.

47. It is a well-established principle of criminal jurisprudence that findings of fact must be based on evidence adduced at the trial and not on conjecture or speculation. Where a trial court reaches conclusions that are not borne out by the evidence, such findings cannot be safely sustained.

48. In the absence of cogent evidence to support those assertions, the conclusions drawn therefrom are liable to be treated as unsound and cannot form a proper basis for maintaining a conviction.

49. The manner in which the Learned Trial Judge has dealt with and evaluated certain material contradictions is also difficult to accept. While acknowledging that some contradictions are clearly discernible in the two statements made by PW1 on separate occasions, the Learned Trial Judge disregarded them on the ground that PW1's evidence was consistent in his evidence-in-chief and cross-examination. In my opinion, such reasoning is highly illogical and unsatisfactory, as consistency in court testimony cannot, by itself, negate or cure material discrepancies between prior statements and the evidence given at trial.

50. It must be emphasized that one of the fundamental tests for determining the credibility of a witness is the test of consistency. To elaborate, the evidence of a witness is analyzed in relation to statements previously made by him or her concerning the incident about which he or she testifies before the court. Material discrepancies or contradictions between prior statements and the testimony at trial may significantly affect the reliability of the witness and must be carefully considered in evaluating the overall credibility of the evidence.

51. In the present case, the Learned Trial Judge has manifestly failed to observe and appreciate the contradictions, inconsistencies, and omissions in the evidence of PW1 from the correct perspective. Such failure has resulted in an undue reliance on testimony that is inherently doubtful, thereby undermining the proper assessment of the prosecution's case.

52. It must be emphasized that contradictions and inconsistencies which go to the root of the prosecution case cannot be brushed aside as minor discrepancies, and where such infirmities are present, the benefit of doubt must necessarily accrue to the accused. Furthermore, where the evidence of the prosecution witness gives rise to reasonable doubt, the accused is entitled to an acquittal, irrespective of whether the defence version is accepted in its entirety.

53. Upon consideration of the foregoing factual and legal context, it is manifestly unsafe to allow the conviction to stand. Accordingly, the conviction and sentence imposed on

the appellants are set aside, and the appellants are acquitted of all charges. The appeal is therefore allowed.

Judge of the Court of Appeal

P. Kumararatnam, J

I agree,

Judge of the Court of Appeal